

United Nations

A/CONF.232/2023/INF.2



General Assembly

Distr.: General
1 February 2023

English only

**Intergovernmental conference on an international
legally binding instrument under the United
Nations Convention on the Law of the Sea on the
conservation and sustainable use of marine
biological diversity of areas beyond
national jurisdiction
Resumed fifth session
New York, 20 February-3 March 2023**

**Compilation of outcomes of small group work submitted after the
issuance of the
Refreshed draft text of an agreement under the
United Nations Convention on the Law of the Sea on the
conservation and sustainable use of marine biological diversity of areas
beyond national jurisdiction
(A/CONF.232/2022/CRP.12)
and
Ending point of the Facilitators-led discussions held on 26 August 2022
on measures such as area-based management tools, including marine
protected areas, and on environmental impact assessments**

Contents

PART I GENERAL PROVISIONS	1
SMALL GROUP ON ARTICLE 1, PARAGRAPHS 4 AND 13.....	2
SMALL GROUP ON DEFINITIONS OF ENVIRONMENTAL IMPACT ASSESSMENT AND CUMULATIVE IMPACTS (ARTICLE 1).....	3
SMALL GROUP ON STRATEGIC ENVIRONMENTAL ASSESSMENTS (ARTICLE 1).....	4
SMALL GROUP ON ARTICLE 4BIS.....	5
PART II MARINE GENETIC RESOURCES, INCLUDING QUESTIONS ON THE SHARING OF BENEFITS	6
SMALL GROUP ON ARTICLE 7.....	7
SMALL GROUP ON STATES LISTING (ARTICLE 7).....	8
SMALL GROUP ON ARTICLE 9, PARAGRAPH 2 AND ARTICLE 10, PARAGRAPH 8 (RENUMBERED AS PARAGRAPH 6 IN REFRESHED DRAFT TEXT).....	9
SMALL GROUP ON NOTIFICATION (ARTICLE 10).....	10
SMALL GROUP ON STATES LISTING (ARTICLES 10, 11 AND 11BIS).....	12
SMALL GROUP ON NOTIFICATION (ARTICLE 13).....	14
PART III MEASURES SUCH AS AREA-BASED MANAGEMENT TOOLS, INCLUDING MARINE PROTECTED AREAS	15
SMALL GROUP ON STATES LISTING (ARTICLE 14).....	16
SMALL GROUP ON ARTICLE 19, PARAGRAPHS 1-4, INCLUDING PARAGRAPH ON RECOGNITION.....	17
SMALL GROUP ON ARTICLE 19BIS.....	18
PART IV ENVIRONMENTAL IMPACT ASSESSMENTS	20
SMALL GROUP ON STATES LISTING (ARTICLE 21BIS).....	21
SMALL GROUP ON DEFINITIONS OF ENVIRONMENTAL IMPACT ASSESSMENT AND CUMULATIVE IMPACTS (ARTICLE 22).....	22
SMALL GROUP ON ARTICLE 23.....	23
SMALL GROUP ON ARTICLE 30.....	25
SMALL GROUP ON STATES LISTING (ARTICLE 30).....	28
SMALL GROUP ON ARTICLES 34 AND 35.....	29
SMALL GROUP ON STATES LISTING (ARTICLES 34 AND 41).....	32
SMALL GROUP ON STRATEGIC ENVIRONMENTAL ASSESSMENTS (ARTICLE 41TER).....	33
PART V CAPACITY-BUILDING AND TRANSFER OF MARINE TECHNOLOGY	34
SMALL GROUP ON STATES LISTING (ARTICLES 42, 43, 44 AND 45).....	35
SMALL GROUP ON ARTICLE 46, PARAGRAPH 1.....	37
SMALL GROUP ON ARTICLE 46, PARAGRAPH 1(B).....	38
SMALL GROUP ON ARTICLE 46, PARAGRAPH 2.....	39
SMALL GROUP ARTICLES 47 AND 47BIS.....	40
SMALL GROUP ON STATES LISTING (ARTICLES 47 AND 47BIS).....	42

PART VI INSTITUTIONAL ARRANGEMENTS	43
SMALL GROUP ON PART IX (ARTICLE 48)	44
PART VII FINANCIAL RESOURCES AND MECHANISM	45
SMALL GROUP ON STATES LISTING (ARTICLE 52)	46
PART VIII IMPLEMENTATION AND COMPLIANCE	47
SMALL GROUP ON ARTICLE 53TER	48
PART IX SETTLEMENT OF DISPUTES AND ADVISORY OPINIONS	49
SMALL GROUP ON PART IX	50
ANNEX II TYPES OF CAPACITY-BUILDING AND TRANSFER OF MARINE TECHNOLOGY	53
SMALL GROUP ON ANNEX II	54
ENDING POINT OF THE FACILITATOR-LED DISCUSSIONS HELD ON 26 AUGUST 2022 ON MEASURES SUCH AS AREA-BASED MANAGEMENT TOOLS, INCLUDING MARINE PROTECTED AREAS	58
ENDING POINT OF THE FACILITATOR-LED DISCUSSIONS HELD ON 26 AUGUST 2022 ON ENVIRONMENTAL IMPACT ASSESSMENTS	62

PART I
GENERAL PROVISIONS

SMALL GROUP ON ARTICLE 1, PARAGRAPHS 4 AND 13

(Led by Singapore)

Article 1 Use of terms

...

4. “Area-based management tool” means a tool, including a marine protected area, for a geographically defined area through which one or several sectors or activities are managed with the aim of achieving particular conservation and sustainable use objectives in accordance with this Agreement.

...

13. “Marine protected area” means a geographically defined marine area that is designated and managed to achieve specific [long-term biodiversity] conservation objectives and may allow, where appropriate, sustainable use provided it is consistent with the conservation objectives.

...

Rationale

Singapore was assigned to lead a drafting group on the definitions of ABMT and MPA under Article 1, and above is the outcome of the drafting group after the session on 24 Aug 2022.

**SMALL GROUP ON DEFINITIONS OF ENVIRONMENTAL IMPACT ASSESSMENT
AND CUMULATIVE IMPACTS**

(Led by Norway)

**Article 1
Use of terms**

...

9. “Cumulative impacts” means [the combined] [incremental] [combined and incremental] impacts resulting from different activities, including known past and present and reasonably foreseeable activities, or from the repetition of similar activities over time, and the consequences of climate change, ocean acidification and related impacts.

...

11. “Environmental impact assessment” means a process to identify and evaluate the potential impacts of an activity to inform decision making.

...

SMALL GROUP ON STRATEGIC ENVIRONMENTAL ASSESSMENTS

(Led by United Kingdom)

Article 1 Use of terms

...

...

Rationale

We propose that there is no definition of 'strategic environmental assessments (SEA)' in Part I and we suggest replacing the existing Option A and B for Art 41ter (1) with the proposed drafting. The drafting provides for two categories of SEA under Article 41 ter – a state-led SEA for plans/programmes and a CoP-led process for a 'regional-type' SEA – which captures both interpretations of an SEA that have been supported by other delegations. We are of the view that this is a constructive approach to reach agreement on this issue. There was support from the group that this drafting could be a landing zone for the SEA issue, with some minor amendments, and that not having a definition would be helpful in moving us forward. There were differing views in the group on the obligation placed on State(s) and the COP to conduct these SEAs, and so there remain square bracket options for may/shall/shall consider. The small group did not focus specifically on Art 41 Ter (2) in the current refreshed text, so this proposal does not impact that provision's placement in the text.

SMALL GROUP ON ARTICLE 4BIS

(Led by Australia)

Article 4 bis Without prejudice

This Agreement, including any decision or recommendation of the Conference of the Parties or any of its subsidiary bodies, shall be without prejudice to, and shall not be relied upon as a basis for asserting or denying any claims to, sovereignty, sovereign rights or jurisdiction, including in respect of any disputes relating thereto .

Rationale

This is a proposal from the facilitator of the small group on Article 4bis, reflecting the discussions at the group's meeting.

PART II
MARINE GENETIC RESOURCES, INCLUDING
QUESTIONS ON THE SHARING OF BENEFITS

SMALL GROUP ON ARTICLE 7

(Led by European Union and its Member States)

Article 7 Objectives

The objectives of this Part are:

(a) the fair and equitable sharing of benefits arising from marine genetic resources of areas beyond national jurisdiction for the conservation and sustainable use of biodiversity beyond national jurisdiction;

(b) the building and development of the capacity of States Parties, including [developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States and developing middle-income countries,] to carry out activities with respect to marine genetic resources of areas beyond national jurisdiction; (c) the generation of knowledge, scientific understanding and technological innovation, including through the development and conduct of marine scientific research as fundamental contributions to the implementation of this Agreement;

(d) the development and transfer of marine technology in accordance with this Agreement .

Commented [A1]: The text itself acceptable but it was commented upon that its acceptance is dependent on the precise text in the relevant, operative provisions of the Agreement.

Commented [A2]: Other working group language on the listing, so this language was not discussed.

Commented [A3]: There was a discussion on the exact placement of this objective (and the order of objectives), however it was not finalized.

Commented [A4]: Dependent on the agreement on the precise text in the relevant, operative provisions of the Agreement.

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 7 Objectives

...

(b) Build and develop the capacity of Parties, particularly developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries, taking into account the special circumstances of small island developing States, to collect *in situ*, access *ex situ*, including as digital sequence information, and utilize marine genetic resources of areas beyond national jurisdiction;

...

**SMALL GROUP ON ARTICLE 9, PARAGRAPH 2 AND ARTICLE 10, PARAGRAPH 8
(RENUMBERED AS PARAGRAPH 6 IN REFRESHED DRAFT TEXT)**

(Led by Singapore)

Article 9

**Activities with respect to marine genetic resources of areas
beyond national jurisdiction**

[...]

[2. [Access] [Collection] *in situ* of marine genetic resources of areas beyond national jurisdiction shall be [carried out] [conducted] with due regard for the rights and legitimate interests of coastal States in areas within their national jurisdiction [and also with due regard for the interests of other States in areas beyond national jurisdiction], in accordance with the Convention. To this end, Parties shall endeavour to cooperate, as appropriate, including through specific modalities for the operation of the clearing-house mechanism determined under Article 51, with a view to implementing this Agreement.]

[...]

Article 10

**Notification on activities with respect to marine genetic resources
of areas beyond national jurisdiction**

[...]

SMALL GROUP ON NOTIFICATION

(Led by Sierra Leone on behalf of the African Group and Norway)

Article 10

Notification on activities with respect to marine genetic resources of areas beyond national jurisdiction

2. Parties shall take the necessary legislative, administrative or policy measures to ensure that collection in situ of marine genetic resources [within the scope of this Part] [of areas beyond national jurisdiction] shall be subject to notification to the clearing-house mechanism in accordance with this Part.

3. **The following information shall be** [Parties shall take the necessary legislative, administrative or policy measures to ensure that the following information is] notified to the clearing-house mechanism six months or as early as possible prior to the collection *in situ* of marine genetic resources of areas beyond national jurisdiction:

(a) The nature and objectives of the project under which the collection is carried out, including, as appropriate, any programme(s) of which it forms part;

(b) The subject matter **of the research**, or if known, marine genetic resources to be targeted or collected, and the purposes for which the subject matter, or if known, marine genetic resources will be **collected**;

(c) The geographical areas in which the collection is to be undertaken;

(e) A summary of the method and means to be used for collection, including the name, tonnage, type and class of vessels, scientific equipment and/or study methods employed, and any contribution to major programmes;

(d) The expected date of first appearance and final departure of the research vessels, or deployment of the ~~the~~ equipment and its removal, as appropriate;

(f) The name(s) of the sponsoring institution(s) and the person in charge of the project;

(g) Opportunities for scientists of all States, in particular for scientists from developing States, to be involved in or associated with the project;

(h) The extent to which it is considered that States that may need and request technical assistance, in particular developing countries, should be able to participate or to be represented in the project;

4. Where there is a material change to the information provided to the clearing-house mechanism prior to the planned collection, updated information shall be notified to the clearing-house mechanism within a reasonable period of time **and not later than the start of collection in situ**.

5. Parties shall ensure that the following information is notified to the clearing-house mechanism as soon as it becomes available, but no later than one year from the collection *in situ* of marine genetic resources of areas beyond national jurisdiction:

Commented [A5]: We maintain the title. Accepted.

Commented [A8]: One delegation - We have another para on Art. 46 that has this obligation.

Accepted that this para might be moved and replaced by 46.

Commented [A9]: Need to discuss the coverage of general obligation. Not finalised.

Commented [A10]: We use the term notified where transmitted/submitted is used. Accepted.

Note: If we have a definition for "collection in situ" we could even stop the chapeau after collection in situ.

Commented [A11]: (b) The subject matter of the research, or if known, marine genetic resources to be targeted or collected, and the purposes for which the marine genetic resources will be collected;

Commented [A12R11]: Accepted.

Commented [A14]: One delegation - swap (d) and (e) to deal with the any deletion suggestion. And this in line with Art. 248. Accepted

Commented [A15]: (d) The expected date of first appearance and final departure of the research vessels, or visits to any installation or static research station in ABNJ, deployment of any ~~the~~ equipment and its removal, as appropriate;

Art. 248 of UNCLOS. Accepted.

Commented [A16]: G and h stay as is. Accepted.

(a) The repository or database where environmental metadata, taxonomic information and other associated data and information, where available, are or will be deposited;

(b) Where the original samples, if available, are or will be held, and the unique identifiers associated with these samples;

(c) A report detailing the geographical area from which marine genetic resources were collected, including information on the latitude, longitude and depth of collection, and, to the extent available, the findings from the activity undertaken.

6. Parties shall ensure that databases and repositories under their jurisdiction are required to periodically notify the notification system within the clearing-house mechanism regarding access *ex situ* and access to associated data and information during that period of time.

7. Where marine genetic resources of areas beyond national jurisdiction are subject to utilization by natural or juridical persons under their jurisdiction and control, the following information shall be notified to the clearing-house mechanism no later than three years from the start of the relevant utilization or as soon as such information becomes available:

(a) Where the results of the utilization can be found, including associated data and information;

(b) Where available, details of the post-collection notification to the clearing-house mechanism related to the marine genetic resources that were the subject of utilization;

(c) Where the original sample that is the subject of utilization, if available, is held;

(d) The modalities envisaged for access *ex situ* and access to associated data and information;

4. In case of commercialization of products based on the utilization of marine genetic resources of areas beyond national jurisdiction, Parties shall notify the clearing-house mechanism information received from natural or juridical persons under their jurisdiction and control on such commercialization.

8. Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to ensure that activities with respect to marine genetic resources of areas beyond national jurisdiction that may result in the utilization of marine genetic resources found in areas both within and beyond national jurisdiction are subject to the prior notification and consultation of the coastal States and any other relevant Parties concerned with a view to avoiding infringement of the rights and legitimate interests of those Parties.

Commented [A17]: (b) Where the original samples, if available, with their associated identifier “unique identifiers”, are or will be held;

Commented [A18R17]: Some delegations, including some groups of States to talk about it further.

Commented [A20]: A group of States - Jurisdiction and/or control still being discussed.

Commented [A21]: One delegation has issues with the term “result”.

Commented [A22]: Moved from Art. 13 para 4 to the last Para in Art. 10. Accepted.

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 10

Notification on activities with respect to marine genetic resources of areas beyond national jurisdiction

...

3. Parties shall take the necessary legislative, administrative or policy measures to ensure that the following information is notified to the clearing-house mechanism six months or as early as possible prior to the collection *in situ* of marine genetic resources of areas beyond national jurisdiction:

...

(h) The extent to which it is considered that States that may need and request technical assistance, in particular developing States, should be able to participate or to be represented in the project.

Article 11

Fair and equitable sharing of benefits

...

2. Non-monetary benefits shall be shared and may be in the form of:

...

(d) Capacity-building, including by financing research programmes, and partnership opportunities for scientists and researchers in research projects, and dedicated initiatives, particularly for developing States, taking into account the special circumstances of small island developing States;

...

[7. The payments shall be made through the financial mechanism established under article 52, which shall distribute them to Parties to this Agreement, on the basis of equitable sharing criteria, taking into account the interests and needs of developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries, taking into account the special circumstances of small island developing States, in accordance with mechanisms established by the access and benefit-sharing mechanism.]

...

Article 11 bis

Access and benefit-sharing mechanism

...

2. The access and benefit-sharing mechanism shall be composed of members elected by the Conference of the Parties from among the candidates nominated by the Parties and shall include members from ~~developing States~~. However, if necessary, the Conference of the Parties may decide to increase the size of the mechanism, having due regard to economy and efficiency. In the election of members of the mechanism, due account shall be taken of the need for equitable geographical representation.

...

Commented [A23]: NOT DISCUSSED: Left for details of mechanism modalities.

SMALL GROUP ON NOTIFICATION

(Led by Sierra Leone on behalf of the African Group and Norway)

Article 13
Transparency and traceability

...

|...

PART III
MEASURES SUCH AS AREA-BASED MANAGEMENT TOOLS,
INCLUDING MARINE PROTECTED AREAS

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 14 Objectives

The objectives of this Part are to:

...

[(e) Support Parties, particularly developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries, taking into account the special circumstances of small island developing States, through capacity-building and the [co-] development and transfer of marine technology in developing, implementing, monitoring, managing and enforcing area-based management tools, including marine protected areas.]

**SMALL GROUP ON ARTICLE 19, PARAGRAPHS 1-4, INCLUDING PARAGRAPH ON
RECOGNITION**

(Led by Norway)

**Article 19
Decision-making**

1. The Conference of the Parties, on the basis of the final proposal and the draft management plan, taking into account the contributions and scientific inputs received during the consultation process established under this Part, and the scientific advice and recommendations from the Scientific and Technical Body:

(a) Shall take decisions on the establishment of area-based management tools, including marine protected areas, and related measures,

(b) May take decisions on measures compatible those adopted by relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, and

(c) May, where proposed measures are within the competences of other global, regional, subregional or sectoral bodies, make recommendations to Parties to this Agreement and global, regional, subregional or sectoral bodies to promote the adoption of relevant measures through such instruments, frameworks and bodies, in accordance with their respective mandates.

2. The Conference of the Parties may recognize, in accordance with the objectives, criteria and decision-making process laid down in this Part, area-based management tools, including, marine protected areas, established under relevant regional, subregional and sectoral bodies, at the request of that body or of a Party authorized to act on its behalf, or Parties authorized to act on its behalf. The following Articles apply to area-based management tools, including marine protected areas, recognised under this paragraph, as if they were established under this Part: The Conference of the Parties shall elaborate the procedures which shall include the provision of adequate information, transparency, notification, consultation with relevant stakeholders and review by the Scientific and Technical Body, and the manner in which the provisions of this Part shall apply for recognition of area based management tool, including marine protected areas.

3. In taking decisions under this Article, the Conference of the Parties shall respect the competences of relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies.

4. The Conference of the Parties shall make arrangements for regular consultations to enhance cooperation and coordination with and among relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies with regard to area-based management tools, including marine protected areas, as well as coordination with regard to related measures adopted under such instruments and frameworks and by such bodies.

...

SMALL GROUP ON ARTICLE 19BIS

(Led by Australia)

Article 19bis XXX

1. As a general rule, the Decisions and recommendations under this part shall be taken by consensus.
2. If no consensus is reached, Decisions and recommendations under this part shall be taken by a three quarter majority of the representatives present and voting, before which the Conference of the Parties shall decide, by a two third majority, present and voting that every effort to reach agreement by consensus has been exhausted.
3. Decisions adopted under this part shall enter into force 120 days after the meeting of the Conference of the Parties at which it was adopted, and shall be binding on all Parties, except for those Parties which make an objection in accordance with paragraph 4 of this Article.
4. During the period of 120 days provided for in paragraph 3 of this Article, any Party may by notification in writing to the Secretariat make an objection with respect to a Decision adopted under this part and that decision shall not be binding on that Party. An objection to a Decision may be withdrawn at any time by written notification to the Secretariat and thereupon the Decision shall be binding for that Party ninety days following the date of the notification stating that the objection is withdrawn.
5. A Party presenting an objection under paragraph 4 shall provide to the Secretariat in writing, at the time of presenting its objection, the reason for its objection, which shall be based on one or more of the following grounds:
 - (i) the Decision is inconsistent with this Agreement or rights of the objecting Party under the Convention or other relevant rules of international law;
 - (ii) the Decision unjustifiably discriminates in form or in fact against the objecting Party; or
 - (iii) the Party cannot practicably comply with the Decision at the time of the objection.
6. A Party making an objection under paragraph 4 shall endeavor to adopt alternative measures or approaches that are equivalent in effect to the Decision to which it has objected, and shall not adopt measures [or approaches], [nor take actions] that would undermine the effectiveness of the Decision to which it has objected.
7. A Party shall report to the Conference of the Parties on its implementation of 19bis 6 [in accordance with Article 21 paragraph 1].
8. An objection to a Decision made in accordance with paragraph 4 shall be reviewed every three years by the objecting party, and only renewed if the party considers it is still necessary, by written notification to the Secretariat. If no such notification of renewal is received, the objection shall be considered automatically withdrawn and thereupon the Decision shall be binding for that Party ninety days

after that objection is automatically withdrawn. The Secretariat shall notify the Party 60 days prior to the date the objection will be automatically withdrawn.

9. Decisions of the Conference of the Parties adopted under this part, and objections to these, shall be made publicly available by the Secretariat and shall be transmitted to all States and relevant legal instruments and frameworks, including the relevant global, regional, subregional and sectoral bodies.

PART IV
ENVIRONMENTAL IMPACT ASSESSMENTS

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 21 bis Objectives

The objectives of this Part are to:

...

[(f) Build and strengthen the capacity of Parties, particularly developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries, taking into account the special circumstances of small island developing States, to prepare, conduct and evaluate environmental impact assessments and strategic environmental assessments in support of the objectives of this agreement.]

**SMALL GROUP ON DEFINITIONS OF ENVIRONMENTAL IMPACT ASSESSMENT
AND CUMULATIVE IMPACTS**

(Led by Norway)

Article 22

Obligation to conduct environmental impact assessments

1. Parties shall ensure that the potential effects on the marine environment of planned activities under their jurisdiction or control, [which take place in areas beyond national jurisdiction] [which have an impact in areas beyond national jurisdiction], are assessed as set out in this Part before they are authorized.

...

SMALL GROUP ON ARTICLE 23

(Led by Singapore)

Article 23

Relationship between this Agreement and environmental impact assessment processes under other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies

1. The Conference of the Parties shall develop mechanisms for the Scientific and Technical Body to consult and/or coordinate with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies with a mandate to regulate activities [with impacts] in areas beyond national jurisdiction or to protect the marine environment.
2. Parties shall promote the use of environmental impact assessments, [and standards] and guidelines [developed] under this Part, in relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies of which they are members.
3. [Global minimum standards and] [g][G]uidelines for the conduct of environmental impact assessments of activities [with impacts] in areas beyond national jurisdiction [by Parties to this Agreement] under relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies shall be developed by the Scientific and Technical Body through consultation or collaboration with these instruments, frameworks and bodies, for consideration and adoption by the Conference of the Parties. These [global minimum standards and] guidelines [shall be set out in an annex to this Agreement and] shall be updated periodically. Parties shall promote the adoption and implementation of these [global minimum standards and] guidelines in the conduct of environmental impact assessments of activities for areas beyond national jurisdiction that fall under relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies of which they are members.
5. It is not necessary to conduct an environmental impact assessment of a [planned] [proposed] activity [with impacts] in areas beyond national jurisdiction provided that [the Party with jurisdiction or control over the [planned] [proposed] activity][Scientific Technical Body][, following consultation with the relevant legal instrument or framework or relevant global, regional, subregional or sectoral body,] determines that:
 - (a) The potential impacts of the [planned] [proposed] activity or category of activity have been assessed in accordance with the requirements of other relevant legal instruments or frameworks or by relevant global, regional, subregional or sectoral bodies; and
 - (c) (i) The assessment already undertaken for the [planned][proposed] activity is [functionally][substantively] equivalent [and comparably comprehensive, including with respect to such elements as the assessment of cumulative impacts] to the one required under this Part and the results of the assessment are taken into account; or

(ii) The regulations or standards of the relevant legal instruments or frameworks or relevant global, regional, subregional or sectoral bodies arising from the assessment, when complied with, prevent or mitigate or manage potential impacts below the threshold for environmental impact assessments under this Part and are complied with.

...

7. A Party that has conducted an environmental impact assessment under a relevant legal instrument or framework or a relevant global, regional, subregional or sectoral body for a [planned][proposed] activity [with impacts] in areas beyond national jurisdiction, shall ensure that the environmental impact assessment report is published through the clearing-house mechanism.

[8. Unless the [planned] [proposed] activities that meet the criteria set out in paragraph 5(c) are subject to monitoring and review under a relevant legal instrument or framework or relevant global, regional, subregional or sectoral body, Parties shall monitor and review the activities and ensure that the monitoring and review reports are published through the clearing-house mechanism.]

SMALL GROUP ON ARTICLE 30

(Led by Canada)

Article 30 Process for environmental impact assessments

1. Parties shall ensure that the process for conducting an environmental impact assessment pursuant to this Part includes the following steps:

(a) *Screening.* Parties shall undertake screening to determine whether an environmental impact assessment is required in respect of a [planned] [proposed] activity under its jurisdiction or control in accordance with article 24 [and make its determination publicly available]:

(i) If a Party determines that an environmental impact assessment is not required for a [planned] [proposed] activity under its jurisdiction or control, it shall make information to support that conclusion publicly available through the clearing-house mechanism under this Agreement.

(ii) A Party may register its [views] [concerns] on a decision published in accordance with subparagraph i with the [Party that made the determination] [and the] [Scientific and Technical Body] within [insert number] days of the publication.

(iii) The Party that made the determination under (i) shall consider the [views][concerns] provided under (ii) and may review its determination.

[(iv) Upon consideration of the [views] [concerns] registered by a Party under (ii), the Scientific and Technical Body [] [shall] review the decision [on the basis of the best available science and scientific information, [as well]][and, where] relevant, traditional knowledge of indigenous peoples and local communities] and, as appropriate, [may make] recommendations to the Party that made the determination.]

[(v) The Party that made the determination under (i) shall consider any recommendations by Scientific and Technical Body .]

(b) *Scoping.* Parties shall ensure that [identify] key environmental[, social, economic, cultural] impacts and other relevant issues, including potential cumulative impacts, [impacts in areas within national jurisdiction][[transboundary impacts] as well as alternatives to be included in the environmental impact assessments that shall be conducted under this Part [are identified]. The

scope shall be defined [after considering public comments and] by using the best available science and scientific information, [as well as] [and, where] relevant traditional knowledge of indigenous peoples and local communities.]

(c) *Impact assessment and evaluation.*

Parties shall ensure that the impacts of [planned] [proposed] activities including cumulative impacts and impacts in areas within national jurisdiction are assessed and evaluated using the best available science and scientific

information, [as well][and, where] relevant, traditional knowledge of indigenous peoples and local communities

(d) *Mitigation, prevention and management of potential adverse effects.*

(i) Parties shall [ensure that][identify] [analyze] measures to prevent, mitigate, and manage [(or offset)] potential adverse effects of the [planned] [proposed] activities under their jurisdiction or control are identified and analysed to avoid significant adverse impacts. Such measures may include consideration of alternatives to the [planned] [proposed] activity under their jurisdiction or control].

(ii) Parties shall ensure that, where appropriate, these measures are incorporated into an environmental management plan;

(e) Public notification and consultation in accordance with article 34;

(f) Preparation and publication of an environmental impact assessment report in accordance with article 35;

2. Parties may conduct joint environmental impact assessments, in particular for activities under the jurisdiction or control of [small island] developing States.

Option 1

[3. A Party may designate a third party to conduct [assist with the conduct of] an environmental impact assessment required under this Agreement. Such a third party may be drawn from the [roster] of experts created pursuant to paragraph 4 below. Environmental impact assessments conducted by such a third party must be submitted to the Party for review and decision-making.]

[4. A [roster] of experts [may][shall] be [identified by][created unde]r the Scientific and Technical Body. Parties with capacity constraints may [commission][request advice and assistance from] those experts to conduct and evaluate screenings and environmental impact assessments for a[planned] [proposed] activity under their jurisdiction or control.]

Option 2

3. A roster of experts [may] [shall] be [identified by][created under] the Scientific and Technical Body. Parties with capacity constraints may [commission] [request advice and assistance from] those experts to conduct environmental impact assessments for a [planned] [proposed] activity under their jurisdiction or control. The Party that [commissioned][requested the advice and assistance] shall [ensure that such environmental impact assessments are submitted to the Party for review and decision-making] [forward such environmental impact assessments for review by the Scientific and Technical Body and decision-making by the Conference of the Parties.

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 30

Process for environmental impact assessments

...

[2. Joint environmental impact assessments may be conducted, in particular for activities under the jurisdiction or control of small island developing States.]

...

SMALL GROUP ON ARTICLES 34 AND 35

(Led by Canada)

Article 34 Public notification and consultation

1. Parties, shall ensure timely public notification of [planned] [proposed] activities under their jurisdiction or control, including, as appropriate, through the secretariat and effective, time-bound opportunities for stakeholder participation throughout the environmental impact assessment process, including through the submission of comments, before a decision is made whether to authorize the activity.

[2 alt [... to all relevant stakeholders, including all States, with an emphasis on the States potentially most affected. Such States shall be determined taking into account the nature and potential effects on the marine environment of the [planned] [proposed] activity and shall include coastal States whose exercise of sovereign rights for the purpose of exploring and exploiting, conserving and managing natural resources may reasonably be believed to be affected by the activity, and States that carry out, in the area of the [planned] [proposed] activity, human activities that may reasonably be believed to be affected, including economic activities;]

2. Stakeholders in this process include potentially affected States, [in particular adjacent coastal States,] [indigenous peoples and local communities with relevant traditional knowledge,] relevant global, regional, subregional and sectoral bodies, non-governmental organizations, the general public, academia, scientific experts[affected parties,] [communities and organizations that have special expertise or jurisdiction,] [interested Parties] .

3. Public notification and consultation shall [,in accordance with Article 48 bis (3) be transparent and inclusive, conducted in a timely manner [, and targeted and proactive [, where practicable,] when involving adjacent small island developing States].

4. Substantive comments received during the consultation process[, including from adjacent coastal States,] shall be considered and responded to or addressed by Parties. Parties shall give particular regard to comments concerning potential impacts in areas within national jurisdiction. Parties shall make public the comments received and the responses or descriptions of the manner in which they were addressed.

[5. The Scientific and Technical Body may conduct further public consultation on reports it is requested to review under this Agreement.]

[6. In cases where the [planned] [proposed] activities affect areas of the high seas that are entirely surrounded by the exclusive economic zones of States, Parties shall:

(a) Maintain targeted and proactive consultations, including prior notification, with such surrounding States;

(b) Consider the views and comments of those surrounding States on the [planned] [proposed] activities and provide written responses specifically addressing such views and comments [, and revise the proposed activities accordingly].]7.

Parties shall ensure access to information related to the environmental impact assessment process under this Agreement. Notwithstanding this, Parties shall not be required to disclose confidential or proprietary information. The fact that confidential or proprietary information has been redacted shall be indicated in public documents.

-
8. [Additional procedures] [Guidance] may be developed by the Conference of the Parties to facilitate consultation at the international level.

Article 35

Environmental impact assessment reports

1. Parties shall ensure the preparation of an environmental impact assessment report for any such assessment undertaken pursuant to this Part.
2. Where an environmental impact assessment is required in accordance with this Part, the environmental impact assessment report shall include, as a minimum, the following information: a description of the [planned] [proposed] activity, including its location, a description of the results of the scoping exercise, a baseline assessment of the marine environment likely to be affected, a description of potential impacts, [including potential cumulative impacts, [impacts in areas within national jurisdiction][transboundary impacts]], a description of potential prevention, mitigation and management measures, uncertainties and gaps in knowledge, information on the public consultation process, a description of consideration of reasonable alternatives to the [planned] [proposed] activity, a description of follow-up actions, including an environmental management plan , and a non-technical summary.
- [3.. Draft environmental impact assessment reports [for activities deemed through the screening as likely to have more than minor or transitory impact] prepared pursuant to this Agreement shall be considered and reviewed by the Scientific and Technical Body.]
- [4. [Before proceeding with a recommendation to the Conference of the Parties under article 38, paragraph 1, the] [The] Scientific and Technical Body may recommend rectifications to the Party. [The Party may require the Scientific and Technical Body, at any time, to make a recommendation to the Conference of the Parties.]]
5. Parties [and the Scientific and Technical Body] shall publish the reports of the environmental impact assessments, including through the clearing-house mechanism. The secretariat shall ensure that all Parties are notified in a timely manner when reports are published in the clearing-house mechanism.
6. Final environmental impact assessment reports shall be considered and reviewed by the Scientific and Technical Body, on the basis of the practices, procedures and knowledge acknowledged under this Agreement, for the purpose of developing guidelines, including the identification of best practices.
7. A selection of the published information used in the screening process to make decisions on whether to conduct an environmental impact assessment, in accordance with articles 24 and 30, shall be considered and reviewed periodically by the Scientific and Technical Body, on the basis of the practices, procedures and knowledge acknowledged under this Agreement, for the purpose of developing guidelines, including the identification of best practices.

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 34 Public notification and consultation

...

3. Public notification and consultation shall be transparent and inclusive, conducted in a timely manner [, and targeted and proactive when involving adjacent small island developing States].

...

Commented [A25]: Not discussed.

Article 41 Review of authorized activities and their impacts

...

[5. All relevant stakeholders, including all States, [in particular adjacent coastal States, including small island developing States,] [with an emphasis on the States potentially most affected as determined under article 34, paragraph 1, subparagraph a,] shall be kept informed through the clearing-house mechanism of [and consulted actively, as appropriate, in] the monitoring, reporting and review processes in respect of an activity approved under this Agreement.]

...

Commented [A26]: Did not discuss, leave to adjacency / coastal State discussions.

SMALL GROUP ON STRATEGIC ENVIRONMENTAL ASSESSMENTS

(Led by United Kingdom)

Article 41ter Strategic environmental assessments

1. Parties, individually or in cooperation with other Parties, [[may][shall] conduct] [shall consider conducting] strategic environmental assessment for plans and programmes relating to activities under their jurisdiction or control, to be conducted in areas beyond national jurisdiction, to assess the potential effects of that plan or programme, as well as alternatives, on the marine environment.

1. (bis) The Conference of the Parties [may][shall] conduct a strategic environmental assessment of an area or region to collate and synthesise best available information about a region, assess current and potential future impacts, as well as identify data gaps and research priorities.

2. When undertaking environmental impact assessments pursuant to this Part, Parties shall take into account the results of relevant strategic environmental assessments carried out under paragraph I, where available.

3. The CoP shall develop guidance on the conduct of each category of strategic environmental assessment described in this Article.

Rationale

We propose that there is no definition of 'strategic environmental assessments (SEA)' in Part I and we suggest replacing the existing Option A and B for Art 41ter (1) with the proposed drafting. The drafting provides for two categories of SEA under Article 41 ter – a state-led SEA for plans/programmes and a CoP-led process for a 'regional-type' SEA – which captures both interpretations of an SEA that have been supported by other delegations. We are of the view that this is a constructive approach to reach agreement on this issue. There was support from the group that this drafting could be a landing zone for the SEA issue, with some minor amendments, and that not having a definition would be helpful in moving us forward. There were differing views in the group on the obligation placed on State(s) and the COP to conduct these SEAs, and so there remain square bracket options for may/shall/shall consider. The small group did not focus specifically on Art 41 Ter (2) in the current refreshed text, so this proposal does not impact that provision's placement in the text.

PART V
CAPACITY-BUILDING AND TRANSFER OF MARINE
TECHNOLOGY

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 42 Objectives

The objectives of this Part are to:

...

(e) More specifically, support developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries, taking into account the special circumstances of small island developing States, through capacity-building and the transfer of marine technology under this Agreement in achieving the objectives in relation to:

...

Article 43 Cooperation in capacity-building and transfer of marine technology

...

3. In giving effect to this Part, Parties shall give full recognition to the special requirements of developing States Parties, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries, as well as the special circumstances of small island developing States. Parties shall ensure that the provision of capacity-building and the transfer of marine technology is not conditional on onerous reporting requirements.

Article 44 Modalities for capacity-building and the transfer of marine technology

1. Parties [within their capabilities], shall ensure capacity-building for, and shall cooperate to ensure the transfer of marine technology to, developing States Parties, taking into account the special circumstances of small island developing States, that need and request it, in accordance with the provisions of this Agreement.

...

4. Capacity-building and the transfer of marine technology shall be based on and be responsive to the needs and priorities of developing States Parties, taking into account the special circumstances of small island developing States, identified through needs assessments on an individual case-by-case, subregional or regional basis. Such needs and priorities may be self-assessed or facilitated through [the capacity-building and transfer of marine technology committee] [a mechanism, which may be established by the Conference of the Parties] and the clearing-house mechanism.

...

Article 45
Modalities for the transfer of marine technology

...

[2. Parties shall promote and encourage economic and legal conditions for the transfer of marine technology to developing States Parties, taking into account the special circumstances of small island developing States, including through the provision of incentives to enterprises and institutions.]

...

4. Marine technology transferred pursuant to this Part shall be appropriate, relevant and, to the extent possible, be reliable, affordable, up to date, environmentally sound, available in an accessible form for developing States Parties, taking into account the special circumstances of small island developing States.

SMALL GROUP ON ARTICLE 46, PARAGRAPH 1

(Led by Australia)

Article 46

Types of capacity-building and transfer of marine technology

1. In support of the objectives set out in article 42, the types of capacity-building and transfer of marine technology may include, and are not limited to, support for the creation or enhancement of the human, scientific, technological, organizational, institutional, financial and other resource capabilities of Parties, such as:

(a) The sharing of relevant data, information, knowledge and research results;

(b) Information dissemination and awareness-raising, including with respect to relevant traditional knowledge of indigenous peoples and local communities, in line with free, prior and informed consent;

(c) The development and strengthening of relevant infrastructure, including equipment and capacity of personnel for its use and maintenance;

(d) The development and strengthening of institutional capacity and national regulatory frameworks or mechanisms;

(e) The development and strengthening of human and financial resources and technical expertise through exchanges, research collaboration, technical support, education and training, and the transfer of technology;

(f) The development and sharing of manuals, guidelines and standards;

(g) The development of technical, scientific and research and development programmes;

(h) The development and strengthening of capacities and technological tools for effective monitoring, control and surveillance of activities within the scope of this Agreement.

...

Rationale

This is a proposal from the facilitator of the small group on Article 46(1), reflecting the discussions at the group's meetings.

SMALL GROUP ON ARTICLE 46, PARAGRAPH 1(B)

(Led by Palau on behalf of Pacific Small Island Developing States)

Article 46

Types of capacity-building and transfer of marine technology

...

1. ...

(b) Information dissemination and awareness-raising, including with respect to relevant traditional knowledge of indigenous peoples and local communities, in line with the free, prior and informed consent of these indigenous peoples and local communities, as appropriate;

...

SMALL GROUP ON ARTICLE 46, PARAGRAPH 2

(Led by Australia)

Article 46

Types of capacity-building and transfer of marine technology

...

2ante. Further details concerning the types of capacity-building and transfer of marine technology identified in this article are elaborated in annex II.

2. The Conference of the Parties, taking account of the recommendations of the Capacity-Building and Transfer of Marine Technology Committee, shall review, assess, and further develop and provide guidance on the indicative and non-exhaustive list of types of capacity-building and transfer of marine technology elaborated in annex II periodically, as necessary, to reflect technological progress and innovation and to respond and adapt to the evolving needs of States, subregions and regions.

...

Rationale

This is a proposal from the facilitator of the small group on Article 46(2), reflecting the discussions at the group's meetings.

SMALL GROUP ARTICLES 47 AND 47BIS

(Led by Caribbean Community)

Article 47 Monitoring and review

1. Capacity-building and the transfer of marine technology undertaken in accordance with the provisions of this Part shall be monitored and reviewed periodically.

2. The monitoring and review referred to in paragraph 1 shall be aimed at:

(a) Assessing and reviewing the needs and priorities of developing States Parties in terms of capacity-building and the transfer of marine technology, paying particular attention to the special requirements of developing States Parties [and landlocked developing states, middle income countries] and to the special circumstances of small island developing States and least developed countries, in accordance with article 44, paragraph 4;

(b) Reviewing the support required, provided and mobilized, and gaps in meeting the assessed needs of developing States Parties in relation to this Agreement;

(c) Identifying and mobilizing funds under the financial mechanism to develop and implement capacity building and the transfer of marine technology, including for the conduct of needs assessments;

(d) Measuring performance on the basis of agreed indicators and reviewing results-based analyses, including on the output, progress and effectiveness of capacity-building and transfer of marine technology under this Agreement, as well as successes and challenges;

(e) Making recommendations for follow-up activities, including on how capacity-building and the transfer of marine technology could be further enhanced to allow developing States Parties, taking into account the special circumstances of small island developing states, to strengthen their implementation of the Agreement.

3. Monitoring and review shall be carried out by the capacity-building and transfer of marine technology committee under the guidance of the Conference of the Parties.

4. In supporting the monitoring and review of capacity-building and the transfer of marine technology, Parties shall submit reports in a format and at such intervals to be determined by the Conference of the Parties, taking into account the recommendations of the capacity building and transfer of marine technology committee, including, where applicable, inputs from regional and subregional committees on capacity-building and the transfer of marine technology, which should be made publicly available. Parties shall ensure that reporting requirements for Parties, in particular developing States Parties, are streamlined and not onerous in any way, including in terms of costs and time requirements.

Article 47bis Capacity-building and transfer of marine technology committee

Commented [A27]: Some delegations have suggested the inclusion of "landlocked developing states" and "middle income countries".

It has been suggested to hold these proposed additions, in brackets, until the discussions regarding the listing of States Parties have been resolved and concluded, within the mandated working groups, across the instrument.

Commented [A28]: No objection received to the addition of this language.

Commented [A29]: No objection received to the addition of this language.

Commented [A31]: No objection received to the addition of this language.

Commented [A32]: No objection received to the removal of the text in the first brackets, and the opening of the second set of brackets.

Commented [A33]: For consistency purposes, it was proposed to change the language to "taking into account", in line with proposed text in Art. 46 para 2.

1. A capacity-building and transfer of marine technology committee is hereby established.

2. The committee shall consist of members possessing appropriate qualifications and **expertise** [to serve objectively in the best interest of the Agreement], nominated by Parties and elected by the Conference of the Parties, taking into account gender balance and equitable geographic distribution, and providing for representation on the committee from the least developed countries [, landlocked developing countries, middle income **countries**] and small island developing States. The terms of reference and modalities for the operation of the committee, [including its selection process and the terms of members' **mandates**,] shall be determined by the Conference of the Parties at its first **meeting**.

3. The Conference of the Parties shall consider the reports and recommendations of the committee on capacity-building and the transfer of marine technology and take appropriate action.

Rationale

CARICOM held two small working groups on Article 47. This submission, along with its comments, reflects the discussions and proposals that resulted, as of 26th August 2022.

Commented [A34]: Delegations agreed to use "and expertise" in place of "who serve in their expert capacity". It was proposed to include the language "to serve objectively in the best interest of the Agreement", however this language remains in brackets as not all delegations were in agreement with this addition.

Commented [A35]: Some delegations have suggested the inclusion of "landlocked developing states" and "middle income countries". It has been suggested to hold these proposed additions, in brackets, until the discussions regarding the listing of States Parties have been resolved and concluded, within the mandated working groups, across the instrument.

Commented [A36]: Some delegations have proposed the re-inclusion of this bracketed language. Some delegations were flexible with this proposal. Some delegations have reserved on this proposal or have not agreed to the re-inclusion.

Commented [A37]: It was proposed that this language should be re-included. No objection was received to this proposal.

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 47 Monitoring and review

...

2. The monitoring and review referred to in paragraph 1 shall be aimed at:

...

(e) Making recommendations for proposed ways forward and follow-up activities, including on how capacity-building and the transfer of marine technology could be further enhanced to allow developing States Parties, taking into account the special circumstances of small island developing States, to strengthen their implementation of the Agreement.

...

[Article 47bis Capacity-building and transfer of marine technology committee]

...

2. The committee shall consist of members possessing appropriate qualifications who serve in their expert capacity, nominated by Parties and elected by the Conference of the Parties, taking into account gender balance and equitable geographic distribution, and providing for representation on the committee from the least developed countries and small island developing States. The terms of reference and modalities for the operation of the committee, including its selection process and the terms of members' mandates, shall be determined by the Conference of the Parties at its first meeting.

...

Commented [A38]: NOT DISCUSSED: Composition of Cmte/Body issue.

PART VI
INSTITUTIONAL ARRANGEMENTS

SMALL GROUP ON PART IX

(Led by Facilitator)

(move to Article 48.5 bis) Advisory opinions

The Conference of the Parties may decide, by consensus, or, if all efforts to reach consensus have been exhausted, by a two-thirds majority of the representatives present and voting, to request the International Tribunal for the Law of the Sea to give an advisory opinion on a legal question on the conformity with this Agreement of a proposal before the Conference of the Parties on any matter within its competence. A request for an advisory opinion may not be sought on a matter within the competence of other global, regional, subregional or sectoral bodies; or on a matter that necessarily involves the concurrent consideration of any unsettled dispute concerning sovereignty or other rights over continental or insular land territory or a claim thereto. The request shall indicate the scope of the legal question on which the advisory opinion is sought. The Conference of the Parties may request that such opinion be given as a matter of urgency.

PART VII
FINANCIAL RESOURCES AND MECHANISM

SMALL GROUP ON STATES LISTING

(Led by G77 and China)

Article 52 Funding

...

6. Access to funding under this Agreement shall be open to developing States Parties on the basis of need, taking into account the needs for assistance of Parties with special requirements, in particular the least developed countries, landlocked developing countries, geographically disadvantaged States, small island developing States, coastal African States, archipelagic States and developing middle-income countries, and taking into account the special circumstances of small island developing States. The funding mechanism established under this Agreement shall be aimed at ensuring efficient access to funding through simplified application and approval procedures and enhanced readiness of support for such developing States Parties.

7. In the light of capacity constraints, Parties shall encourage international organizations to grant preferential treatment to, and consider the specific needs and special requirements of developing States Parties, in particular the least developed countries, landlocked developing States and small island developing States, and taking into account the special circumstances of small island developing States, in the allocation of appropriate funds and technical assistance and the utilization of their specialized services for the purposes of the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction.

...

Commented [A39]: "States"

PART VIII
IMPLEMENTATION AND COMPLIANCE

SMALL GROUP ON ARTICLE 53TER

(Led by Facilitator)

Article 53 ter Implementation and Compliance Committee

1. A committee to facilitate and consider the implementation of and promote compliance with the provisions of this Agreement is hereby established. The committee shall be [expert-based and] facilitative in nature and, function in a manner that is transparent, non-adversarial, non-punitive.
3. The members of the committee shall be nominated by Parties and elected by the Conference of the Parties, with due consideration to equitable geographical representation, shall serve objectively and in the best interest of this Agreement. The members shall be persons with experience related to this Agreement.
4. The committee shall operate under the modalities and rules of procedure adopted by the Conference of the Parties at its first meeting, considering issues of implementation and compliance at the individual and systemic levels, among other things, and report periodically and make recommendations, as appropriate while cognisant of respective national capabilities and circumstances, to the Conference of the Parties.
5. In the course of its work, the committee may draw on appropriate information from bodies established under this Agreement, as well as relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies, as may be required.

PART IX
SETTLEMENT OF DISPUTES AND ADVISORY OPINIONS

SMALL GROUP ON PART IX

(Led by Facilitator)

Article 54 bis Prevention of disputes

Parties shall cooperate in order to prevent disputes.

Article 54 Obligation to settle disputes by peaceful means

Parties have the obligation to settle their disputes concerning the interpretation or application of this Agreement by negotiation, inquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice.

Article 54 ter ante [Previously 55(6ter)] Settlement of disputes by any peaceful means chosen by the Parties

Nothing in this Part impairs the right of any Party to this Agreement to agree at any time to settle a dispute between them concerning the interpretation or application of this Agreement by any peaceful means of their own choice

Article 54 ter Disputes of a technical nature

Where a dispute concerns a matter of a technical nature, the Parties concerned may refer the dispute to an ad hoc expert panel established by them. The panel shall confer with the Parties concerned and shall endeavour to resolve the dispute expeditiously without recourse to binding procedures for the settlement of disputes under article [55] of this Agreement.

Article 55 Procedures for the settlement of disputes

OPTION I:

1. The provisions relating to the settlement of disputes set out in Part XV of the Convention apply mutatis mutandis to any dispute concerning the interpretation or application of this Agreement between Parties to this Agreement that are also Parties to the Convention.

1bis [Previously 4bis]. The provisions of Part XV and Annexes V, VI, VII and VIII of the Convention are incorporated into this Agreement for the purpose of settlement of disputes involving a Party to this Agreement that is not a Party to the Convention.

2. Any procedure accepted by a Party to this Agreement that is also a Party to the Convention pursuant to article 287 of the Convention shall apply to the settlement of disputes under this Part, unless that Party, when signing, ratifying, approving or acceding to this Agreement, or at any time thereafter, has accepted another procedure pursuant to article 287 for the settlement of disputes under this Part.

3. Any declaration made by a Party to this Agreement that is also a Party to the Convention pursuant to article 298 of the Convention shall apply to the settlement of disputes under this Part, unless that Party, when signing, ratifying or acceding to this Agreement, or at any time thereafter, has made a different declaration pursuant to article 298 of the Convention for the settlement of disputes under this Part.

4. A Party to this Agreement that is not a Party to the Convention, when signing, ratifying or acceding to this Agreement, or at any time thereafter, shall be free to choose, by means of a written declaration, submitted to the Depositary, one or more of the following means for the settlement of disputes concerning the interpretation or application of this Agreement:

(a) the International Tribunal for the Law of the Sea;

(b) the International Court of Justice;

(c) an arbitral tribunal constituted under Annex VII of the Convention as incorporated by article [55(1bis)];

(d) a special arbitral tribunal under Annex VIII of the Convention as incorporated by article [55(1bis)] for one or more of the categories of disputes specified therein.

A Party to this Agreement that is not a Party to the Convention that has not issued a declaration shall be deemed to have accepted the option in paragraph 4(c) of article 55. If the parties to a dispute have not accepted the same procedure for the settlement of the dispute, it may be submitted only to arbitration under Annex VII of the Convention, unless the Parties otherwise agree.

5. A Party to this Agreement that is not a Party to the Convention may, when signing, ratifying, approving or acceding to this Agreement, or at any time thereafter, without prejudice to the obligations arising under this Part, declare in writing that it does not accept any one or more of the procedures provided for in section 2 of Part XV of the Convention with respect to one or more of the categories of disputes set out in article 298 of the Convention for the settlement of disputes under this Part. Article 298 of the Convention shall apply to such a declaration.

6. The provisions of this article shall be without prejudice to the procedures on the settlement of disputes that Parties have agreed to as participants in a relevant legal instrument or framework, or as member of a relevant global, regional, subregional or sectoral body concerning the interpretation and application of such instruments and frameworks.

6bis. Nothing in this Agreement shall be interpreted as conferring jurisdiction upon a court or tribunal over any dispute that necessarily involves the concurrent consideration of any unsettled dispute concerning sovereignty or other rights over continental or insular land territory or a claim thereto of a Party to this Agreement.

[OPTION II:]

1. In the event of a dispute between Parties concerning the interpretation or application of this Agreement, the parties concerned shall, unless they agree otherwise, seek a solution by negotiation.

2. If the parties concerned cannot reach agreement by negotiation, they may jointly seek the good offices of, or request mediation by, a third party.

3. When ratifying, accepting, approving or acceding to this Agreement, or at any time thereafter, a Party may declare in writing to the depositary that for a dispute not resolved in accordance with paragraph 1 or paragraph 2 above, it accepts one or all of the following means of dispute settlement as compulsory:

(a) Arbitration, in accordance with the procedure [to be adopted by the Conference of the Parties] [laid down in annex VII to the Convention];

(b) Submission of the dispute to the International Tribunal for the Law of the Sea; or

(c) Submission of the dispute to the International Court of Justice.

[4. If the parties to the dispute have not, in accordance with paragraph 3 above, accepted the same or any procedure, the dispute shall be submitted to conciliation [in accordance with the procedure to be adopted by the Conference of the Parties] [pursuant to the procedure set out in section 2 of annex V to the Convention] unless the parties otherwise agree.]

5. This article shall not apply to any dispute concerning the land territory, sovereignty, sovereign rights or jurisdiction of a Party to this Agreement.]

Article 55 bis **Provisional arrangements**

Pending the settlement of a dispute in accordance with this Part, the parties to the dispute shall make every effort to enter into provisional arrangements of a practical nature.

(move to Article 48.5 bis) Advisory opinions

The Conference of the Parties may decide, by consensus, or, if all efforts to reach consensus have been exhausted, by a two-thirds majority of the representatives present and voting, to request the International Tribunal for the Law of the Sea to give an advisory opinion on a legal question on the conformity with this Agreement of a proposal before the Conference of the Parties on any matter within its competence. A request for an advisory opinion may not be sought on a matter within the competence of other global, regional, subregional or sectoral bodies; or on a matter that necessarily involves the concurrent consideration of any unsettled dispute concerning sovereignty or other rights over continental or insular land territory or a claim thereto. The request shall indicate the scope of the legal question on which the advisory opinion is sought. The Conference of the Parties may request that such opinion be given as a matter of urgency.

ANNEX II
TYPES OF CAPACITY-BUILDING AND TRANSFER OF
MARINE TECHNOLOGY

SMALL GROUP ON ANNEX II

(Led by Australia)

ANNEX II

Types of capacity-building and transfer of marine technology

Capacity-building and the transfer of marine technology, [including biotechnology] under this Agreement, may include, and are not limited to:

(a) The sharing of relevant data, information, knowledge and research, to the extent possible in user-friendly formats, including:

- (i) marine scientific and technological knowledge;
- (ii) information on the conservation and sustainable use of marine biological diversity of areas beyond national jurisdiction;
- (iii) research and development results consistent with scientific best practice;

(b) Information dissemination and awareness-raising, including with regard to:

- (i) Marine scientific research, marine sciences and related marine operations and services;
- (ii) Environmental and biological information collected through research conducted in areas beyond national jurisdiction;
- (iii) Relevant traditional knowledge of indigenous peoples and local communities,, in line with the free, prior and informed consent of these indigenous peoples and local communities, as appropriate;
- (iv) Stressors on the ocean that affect marine biological diversity of areas beyond national jurisdiction, including the adverse effects of climate change and ocean acidification;
- (v) Measures such as area-based management tools, including marine protected areas;
- (vi) Environmental impact assessments;

(c) The provision, development and strengthening of relevant infrastructure, including equipment, such as:

- (i) technology, including sampling and methodology equipment (e.g., for water, geological, biological or chemical samples);
- (ii) equipment necessary to support and further develop research and development capabilities, including in data management, in the context of [[the collection of] [access to] and the utilization] of marine genetic resources, measures such as area-based management tools, including marine protected areas, and the conduct of environmental impact assessments;

(d) The development and strengthening of national and regional institutional capacity and national regulatory frameworks or mechanisms, including:

- (i) Governance, policy and legal frameworks and mechanisms;

(ii) Assistance in the development, implementation and enforcement of relevant national legislative, administrative or policy measures, including associated regulatory, scientific and technical requirements at the national, subregional or regional level;

(iii) data management, monitoring and reporting;

(iv) Capacity to translate relevant data and information into effective and efficient policies, including by facilitating access to and the acquisition of knowledge necessary to inform decision makers in developing States Parties;

(vi) The establishment of national and regional scientific centres, including as data repositories;

The development of regional centres of excellence and regional centres for skills development;

(ix) Increasing cooperative links between regional institutions, for example, North-South and South-South collaboration and collaboration among regional seas organizations and regional fisheries management organizations;

(e) The development and strengthening of human resources and technical expertise through exchanges, research collaboration, technical support, education and training and the transfer of technology, such as:

(i) Collaboration and cooperation in marine science, including through data collection, technical exchange, scientific research projects and programmes, and the development of joint scientific research projects in cooperation with institutions in developing States;

(ii) Short-term, medium-term and long-term education and training in:

- a. The natural and social sciences, both basic and applied, to develop scientific and research capacity;
- b. Technology, and the application of marine science and technology, to develop scientific and research capacities;
- c. Policy and governance;
- d. The relevance and application of traditional knowledge of indigenous peoples and local communities;

(iii) The exchange of experts, including experts on relevant traditional knowledge of indigenous peoples and local communities;

(iv) The provision of funding for the development of human resources and technical expertise, including through:

- a. The provision of scholarships or other grants for representatives of [small island developing States Parties, coastal African States Parties, Least Developed States Parties, landlocked developing States Parties and developing middle-income States Parties] in workshops, programmes or other relevant training programmes to develop their specific capacities;
- b. The provision of financial and technical expertise and resources, in particular for [small island developing States Parties, coastal African States Parties, Least Developed States Parties, landlocked developing States Parties and developing middle-income States Parties], concerning environmental impact assessments;

-
- (v) The establishment of a networking mechanism among trained human resources;
 - (f) The development and sharing of manuals, guidelines and standards, including:
 - (i) Criteria and reference materials;
 - (ii) Technology standards and rules;
 - (iii) A repository for manuals and relevant information to share knowledge and capacity on how to conduct environmental impact assessments, lessons learned and best practices;
 - (g) The development of technical, scientific and research and development programmes, [including biotechnological research activities] relevant to the implementation of this Agreement.

Rationale

This is a proposal from the facilitator of the small group on Annex II, reflecting the discussions at the group's meetings.

The text in square brackets in the chapeau and in paragraph (g) remains in square brackets because it is subject to discussions relating to "biotechnology" and "biotechnological research activities" in others parts of the Agreement.

The text in square brackets in the sub-paragraph (c)(ii) remains in square brackets because it is subject to discussions in the marine genetic resources chapter of the Agreement.

The text in square brackets in the chapeau and in sub-paragraphs (c)(iv)(a.) and (b.) remains in square brackets because it is subject to discussions in the small group on listing of States (cross-cutting), facilitated by the G77.

**ENDING POINT OF THE FACILITATOR-LED DISCUSSIONS
HELD ON 26 AUGUST 2022 ON MEASURES SUCH AS AREA-
BASED MANAGEMENT TOOLS, INCLUDING MARINE
PROTECTED AREAS**

**Article 17 bis
Publicity and preliminary review of proposals**

Upon receipt of a proposal in writing, the secretariat shall make the proposal publicly available and transmit it to the Scientific and Technical Body for a preliminary review. The purpose of the review is to ascertain that the draft proposal contains the information required under article [17 and] 17 bis, including one or more indicative criteria described in this Part and in annex I. The outcome of that review would be made publicly available and shall be conveyed to the proponent by the secretariat. The proponent shall retransmit the proposal to the secretariat, having taken into account the preliminary review by the Scientific and Technical Body. The secretariat shall notify the parties and make that retransmitted proposal publicly available and facilitate consultations pursuant to article 18.

**Article 18
Consultations on and assessment of proposals**

...

5. The proponent shall consider the contributions received during the consultation period, [as well as the views of and information from the Scientific and Technical Body] and may, as appropriate, revise the proposal accordingly or respond to substantive contributions not reflected in the proposal.

...

**Article 19
Decision-making**

1. The Conference of the Parties, on the basis of the final proposal and the draft management plan, taking into account the contributions and scientific inputs received during the consultation process established under this Part, and the scientific advice and recommendations from the Scientific and Technical Body:

(a) Shall take decisions on the establishment of area-based management tools, including marine protected areas, and related measures;

(b) May take decisions on measures compatible with those adopted by relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies; and

(c) May, where proposed measures are within the competences of other global, regional, subregional or sectoral bodies, make recommendations to Parties to this Agreement and global, regional, subregional and sectoral bodies to promote the adoption of relevant measures through such instruments, frameworks and bodies, in accordance with their respective mandates.

2. The Conference of the Parties may recognize, in accordance with the objectives, criteria and decision-making process laid down in this Part, area-based management tools, including, marine protected areas, established under relevant regional, subregional and sectoral bodies, at the request of that body or of a Party authorized to act on its behalf[.]

3. The Conference of the Parties shall elaborate the procedures which shall include the provision of adequate information, transparency, notification, consultation with relevant stakeholders and review by the Scientific and Technical Body, and the manner in which the provisions of this Part shall apply for recognition of area-based management tool, including marine protected areas.

4. In taking decisions under this article, the Conference of the Parties shall respect the competences of relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies.

5. The Conference of the Parties shall make arrangements for regular consultations to enhance cooperation and coordination with and among relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies with regard to area-based management tools, including marine protected areas, as well as coordination with regard to related measures adopted under such instruments and frameworks and by such bodies.

6. Decisions and recommendations adopted by the Conference of the Parties in accordance with this Part shall not undermine the effectiveness of measures adopted in respect of areas within national jurisdiction and shall be made with due regard for the rights and duties of all States in accordance with the Convention. In cases where measures proposed under this Part would affect or could reasonably be expected to affect the superjacent water above the seabed and subsoil of submarine areas over which a coastal State exercises sovereign rights in accordance with the Convention, such measures shall have due regard to the sovereign rights of such coastal States. Consultations shall be undertaken to that end, in accordance with the provisions of this Part.

7. In cases where an area-based management tool, including a marine protected area, established under this Part subsequently falls, either wholly or in part, within the national jurisdiction of a coastal State, the part within national jurisdiction shall immediately cease to be in force. The part remaining in areas beyond national jurisdiction shall remain in force until the Conference of the Parties, at its next meeting, reviews and decides whether to amend or revoke the area-based management tool, including a marine protected area, as necessary.

8. An area-based management tool, including a marine protected area, established under this Part shall continue in force when a new regional [agreement] [treaty] body is established with competence to establish an area-based management tool or a marine protected area that overlaps, geographically, with the area-based management tool or marine protected area established under this Part.

9. Upon the establishment or amendment of a legal instrument or framework [or relevant global, regional, subregional or sectoral body], measures adopted by the Conference of Parties under this Part that are within the competence of the new instrument, framework, or body may be amended or revoked.

Article 19bis

XXX

-
1. As a general rule, the decisions and recommendations under this part shall be taken by consensus.
 2. If no consensus is reached, decisions and recommendations under this part shall be taken by a three fourths majority of the representatives present and voting, before which the Conference of the Parties shall decide, by a two thirds majority, present and voting that every effort to reach agreement by consensus has been exhausted. (Pending agreement in Cross-Cutting)
 3. Decisions adopted under this part shall enter into force 120 days after the meeting of the Conference of the Parties at which it was adopted, and shall be binding on all Parties, except for those Parties which make an objection in accordance with paragraph 4 of this article.
 4. During the period of 120 days provided for in paragraph 3 of this article, any Party may by notification in writing to the Secretariat make an objection with respect to a decision adopted under this part and that decision shall not be binding on that Party. An objection to a decision may be withdrawn at any time by written notification to the Secretariat and thereupon the decision shall be binding for that Party ninety days following the date of the notification stating that the objection is withdrawn.
 5. A Party presenting an objection under paragraph 4 shall provide to the Secretariat in writing, at the time of presenting its objection, the [details] [reason] for its objection, which shall be based on one or more of the following grounds:
 - (i) The decision is inconsistent with this Agreement or rights of the objecting Party under the Convention [~~or other relevant rules of international law~~];
 - (ii) The decision unjustifiably discriminates in form or in fact against the objecting Party; or
 - (iii) The Party [cannot practicably comply with the decision] ~~after taking all reasonable efforts at the time of the objection~~ [The Party has a legal impossibility to comply] [after taking all reasonable efforts].
 6. A Party making an objection under paragraph 4 shall endeavor to adopt alternative measures or approaches that are equivalent in effect to the decision to which it has objected, and shall not adopt measures [or approaches], [nor take actions] that would undermine the effectiveness of the decision to which it has objected.
 7. A Party shall report to the Conference of the Parties on its implementation of paragraph 6 of this article [in accordance with article 21, paragraph 1].
 8. An objection to a decision made in accordance with paragraph 4 shall be reviewed every three years by the objecting Party, and only renewed if the party considers it is still necessary, by written notification, [which includes the Party's views on the renewal of the objection], to the Secretariat. If no such notification of renewal is received, the objection shall be considered automatically withdrawn and thereupon the decision shall be binding for that Party ninety days after that objection is automatically withdrawn. The Secretariat shall notify the Party 60 days prior to the date the objection will be automatically withdrawn.]
 9. Decisions of the Conference of the Parties adopted under this part[, and objections to these,] shall be made publicly available by the Secretariat and shall be transmitted to all States and relevant legal instruments and frameworks, including the relevant global, regional, subregional and sectoral bodies.

[Article 20 ante]
Emergency measures

The Conference of the Parties shall adopt area-based management tools, including marine protected areas and related measures in areas beyond national jurisdiction to be applied on an emergency basis, if necessary, where an activity, or when a natural phenomenon or human-caused disaster [has, or is likely to have, a significant adverse impact on] [has caused, or is likely to cause, serious or irreversible harm to] marine biological diversity of areas beyond national jurisdiction, to ensure that the adverse impact is not exacerbated.

(a) Measures under this paragraph shall be considered necessary only if the [] adverse impact cannot be managed in a timely manner through the application of the other provisions of this Agreement or by a relevant legal instrument or framework or global, regional, subregional or sectoral body.

(b) Measures taken on an emergency basis shall be based on the best available science and scientific information and, where available, relevant traditional knowledge of indigenous peoples and local communities. Such measures may be proposed by Parties or recommended by the Scientific and Technical Body, and may be adopted intersessionally. The measures shall be temporary, must be reconsidered for decision at the next meeting of the Conference of the Parties following their adoption, and shall expire either upon being replaced by area-based management tools established in accordance with the provisions of this Agreement or at a date to be decided by the Conference of the Parties that shall not be later than two years following their adoption, [or by a decision of the Conference of the Parties when the circumstances that necessitated the measure cease to exist,] whichever is earlier.

(c) Procedures for the establishment of emergency measures, including consultation procedures, shall be elaborated by the Scientific and Technical Body, as necessary, for consideration and adoption by the Conference of the Parties at its first meeting. Such procedures shall be inclusive and transparent.

ENDING POINT OF THE FACILITATOR-LED DISCUSSIONS HELD ON 26 AUGUST 2022 ON ENVIRONMENTAL IMPACT ASSESSMENTS

Article 1 Use of terms

...

8. “Cumulative impacts” means combined and incremental impacts resulting from different activities, including known past and present and reasonably foreseeable activities, or from the repetition of similar activities over time, and the consequences of climate change, ocean acidification and related impacts.

...

Article 22 Obligation to conduct environmental impact assessments

1. Parties shall ensure that the potential effects on the marine environment of planned activities under their jurisdiction or control, [which take place in areas beyond national jurisdiction] [which have an impact in areas beyond national jurisdiction], are assessed as set out in this Part before they are authorized.

[2. On the basis of articles 204 to 206 of the Convention, Parties shall take the necessary legislative, administrative or policy measures, as appropriate, to implement [the provisions of] this Part [and any further measures [on the conduct of environmental impact assessments] adopted by the Conference of the Parties].]

OPTION I:

3. When Parties determine that a planned activity in marine areas within national jurisdiction is likely to have impacts in areas beyond national jurisdiction, Parties shall publish the reports of the results of any environmental impact assessments prepared under their national legislation, including through the clearing-house mechanism.

4. A Party may extend the application of this Part to planned activities under its jurisdiction or control, which take place in marine areas within national jurisdiction and are likely to have impacts in areas beyond national jurisdiction. In that case, it shall notify the [Secretary-General/depositary] accordingly, at the time of expressing its consent to be bound by this Agreement or at any time thereafter.

OPTION II:

3. Where a planned activity falling under the jurisdiction of a Party that has the potential to have impacts/effects in areas beyond national jurisdiction and meets or exceeds the threshold criteria for the conduct of environmental impact assessments set out in this Part ~~that is to be conducted in marine areas within national jurisdiction~~ is likely to have more than a minor or transitory effect in areas beyond national jurisdiction, ~~it shall be subject to an environmental impact assessment~~ the Party with jurisdiction or control over such activity shall ensure that an environmental impact assessment of such activity is conducted in accordance with this Part or an assessment is conducted of such activity under such Party's national legislation that is substantively equivalent to the ~~one~~ assessment required under this Part. The Party shall:

(a) ~~Submit the impact assessment to~~ Notify the Scientific and Technical Body ~~for its input and recommendations in a timely manner so as to provide an opportunity for such body to provide comments during the public consultation process;~~

(b) ~~Ensure that approved activities are~~ the activity is subject to monitoring, reporting and review in the manner as provided in this Part; and

(c) Ensure that all reports regarding the activity are made public in the manner provided in this Part

~~Where a [planned][proposed] activity falling under the jurisdiction of a Party that has the potential to have impacts/effects in areas beyond national jurisdiction and meets or exceeds the threshold criteria for the conduct of environmental impact assessments set out in this Part that is to be conducted in marine areas within national jurisdiction is likely to have more than a minor or transitory effect in areas beyond national jurisdiction, it shall be subject to an environmental impact assessment the Party with jurisdiction or control over such activity shall ensure that an environmental impact assessment of such activity is conducted in accordance with this Part or an assessment is conducted of such activity under such Party's national legislation that is substantively equivalent to the one~~ assessment required under this Part. The Party shall:

(a) ~~Submit the impact assessment to~~ Notify the Scientific and Technical Body ~~for its input and recommendations in a timely manner so as to provide an opportunity for such body to provide comments during the public consultation process;~~

(b) ~~Ensure that approved activities are~~ the activity is subject to monitoring, reporting and review in the manner as provided in this Part; and

(c) Ensure that all reports regarding the activity are made public in the manner provided in this Part

OPTION III:

[3. Where a planned activity falling under the jurisdiction of a Party has the potential to have impacts/effects in areas beyond national jurisdiction and meets or exceeds the threshold criteria for the conduct of environmental impact assessments set out in this Part, it shall be subject to an environmental impact assessment that is substantively equivalent to the one required under this Part. The Party may request the Conference of the Parties to provide advice and assistance for conducting environmental impact assessment, as well as in determining if a planned activity under its jurisdiction may proceed as provided in Article 38 paragraph 4, and monitoring, reporting and review of the authorized activities.]

Article 23

Relationship between this Agreement and environmental impact assessment processes under other relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies

1. The Conference of the Parties shall develop mechanisms for the Scientific and Technical Body to consult and/or coordinate with relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies with a mandate to regulate activities [with impacts] in areas beyond national jurisdiction or to protect the marine environment.

2. Parties shall promote the use of environmental impact assessments, [and [global minimum] standards] and guidelines under this Part, in relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies of which they are members.

3. [Global minimum standards and] [g][G]uidelines for the conduct of environmental impact assessments of activities [with impacts] in areas beyond national jurisdiction [by Parties to this Agreement] under relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies shall be developed by the Scientific and Technical Body through consultation or collaboration with these instruments, frameworks and bodies, for consideration and adoption by the Conference of the Parties. [These global minimum standards shall be set out in an annex to this Agreement.] These guidelines shall be updated periodically. Parties shall promote the adoption and implementation of these [global minimum standards and] guidelines in the conduct of environmental impact assessments of activities for areas beyond national jurisdiction that fall under relevant legal instruments and frameworks and relevant global, regional, subregional and sectoral bodies of which they are members.

4. It is not necessary to conduct an environmental impact assessment of a planned activity [with impacts] in areas beyond national jurisdiction provided that [the Party with jurisdiction or control over the planned activity] [the Scientific and Technical Body] [, following consultation with the relevant legal instrument or framework or relevant global, regional, subregional or sectoral body,] determines that:

Option 1: (a) The potential impacts of the planned activity or category of activity have been assessed in accordance with the requirements of other relevant legal instruments or frameworks or by relevant global, regional, subregional or sectoral bodies; and

(b) (i) The assessment already undertaken for the planned activity is [functionally] [substantively] equivalent [and comparably comprehensive, including with respect to such elements as the assessment of cumulative impacts] to the one required under this Part, and the results of the assessment are taken into account; [or]

(ii) The regulations or standards of the relevant legal instruments or frameworks or relevant global, regional, subregional or sectoral bodies arising from the assessment, when complied with, prevent or mitigate or manage potential impacts below the threshold for environmental impact assessments under this Part, and have been complied with.

Option 2: The activity is being conducted in accordance with rules and guidelines appropriately established under relevant legal instruments and frameworks and by relevant global, regional, subregional and sectoral bodies that require environmental impact assessments, regardless of whether or not an environmental impact assessment is required under those rules or guidelines.

[5. Where a planned activity falling under the jurisdiction of a Party has the potential to have impacts/effects in areas beyond national jurisdiction and meets or exceeds the threshold criteria for the conduct of environmental impact assessments set out in this Part, it shall be subject to an environmental impact assessment that is substantively equivalent to the one required under this Part. The Party shall:

(a) Submit the impact assessment to the Scientific and Technical Body for its input and recommendations;

(b) Ensure that approved activities are subject to monitoring, reporting and review in the same manner as provided in this Part;

(c) Ensure that all reports are made public in the manner provided in this Part.]

6. A Party that has conducted an environmental impact assessment under a relevant legal instrument or framework or a relevant global, regional, subregional or sectoral body for a planned activity [with impacts] in areas beyond national jurisdiction, shall ensure that the environmental impact assessment report is published through the clearing-house mechanism.

7. Unless the planned activities that meet the criteria set out in paragraph 4 are subject to monitoring and review under a relevant legal instrument or framework or relevant global, regional, subregional or sectoral body, Parties shall monitor and review the activities and ensure that the monitoring and review reports are published through the clearing-house mechanism.

...

Article 30

Process for environmental impact assessments

1. Parties shall ensure that the process for conducting an environmental impact assessment pursuant to this Part includes the following steps:

(a) *Screening.* Parties shall undertake screening to determine whether an environmental impact assessment is required in respect of a planned activity under its jurisdiction or control in accordance with article 24 and make its determination publicly available:

(i) If a Party determines that an environmental impact assessment is not required for a planned activity under its jurisdiction or control, it shall make information to support that conclusion publicly available through the clearing-house mechanism under this Agreement;

(ii) A Party may register its views on a decision published in accordance with subparagraph i with the [Party that made the determination] [and the] [Scientific and Technical Body] within [60] days of the publication;

(iii) The Party that made the determination under (i) shall consider the views provided under (ii) and may review its determination[.][;]

[(iv) Upon consideration of the [views] [concerns] registered by a Party under (ii), the Scientific and Technical Body [shall] review the decision [on the basis of the best available science and scientific information and, where available, relevant traditional knowledge of indigenous peoples and local communities] and, as appropriate, [may make] recommendations to the Party that made the determination;]

[(v) The Party that made the determination under (i) shall consider any recommendations by Scientific and Technical Body.]

(b) *Scoping.* Parties shall ensure that key environmental [, social, economic, cultural] impacts and other relevant issues, including potential cumulative impacts, impacts in areas within national jurisdiction as well as alternatives to be included in the environmental impact assessments that shall be conducted under this Part are identified. The scope shall be defined [after considering [public comments][comments from relevant stakeholders] and] by using the best available

science and scientific information and, where available, relevant traditional knowledge of indigenous peoples and local communities.

(c) *Impact assessment and evaluation.*

Parties shall ensure that the impacts of planned activities, including cumulative impacts and impacts in areas within national jurisdiction, are assessed and evaluated using the best available science and scientific information, and, where available, relevant traditional knowledge of indigenous peoples and local communities

(d) *Mitigation, prevention and management of potential adverse effects.*

(i) Parties shall ensure that measures to prevent, mitigate, and manage [or offset] potential adverse effects of the planned activities under their jurisdiction or control are identified and analysed to avoid significant adverse impacts. Such measures may include consideration of alternatives to the planned activity under their jurisdiction or control;

(ii) Parties shall ensure that, where appropriate, these measures are incorporated into an environmental management plan;

(e) Public notification and consultation in accordance with article 34;

(f) Preparation and publication of an environmental impact assessment report in accordance with article 35.

2. Parties may conduct joint environmental impact assessments, in particular for activities under the jurisdiction or control of [small island] developing States.

3. A roster of experts [may] [shall] be created under the Scientific and Technical Body. Parties with capacity constraints may request advice and assistance from those experts to conduct environmental impact assessments for a planned activity under their jurisdiction or control. The Party that requested the advice and assistance shall [ensure that such environmental impact assessments are submitted to the Party for review and decision-making] [forward such environmental impact assessments for review by the Scientific and Technical Body and decision-making by the Conference of the Parties].

...

Article 34

Public notification and consultation

1. Parties, shall ensure timely public notification of planned activities, including, as appropriate, through the secretariat planned and effective, time-bound opportunities for stakeholder participation throughout the environmental impact assessment process, including through the submission of comments, before a decision is made whether to authorize the activity.

2. **Option A:** Stakeholders in this process include potentially affected States, [in particular adjacent coastal States,] [indigenous peoples and local communities with relevant traditional knowledge,] relevant global, regional, subregional and sectoral bodies, non-governmental organizations, the general public, academia, scientific experts[affected parties,] [communities and organizations that have special expertise or jurisdiction,] [interested Parties] .

Option B: [... to all relevant stakeholders, including all States, with an emphasis on the States potentially most affected. Such States shall be determined

taking into account the nature and potential effects on the marine environment of the planned activity and shall include coastal States whose exercise of sovereign rights for the purpose of exploring and exploiting, conserving and managing natural resources may reasonably be believed to be affected by the activity, and States that carry out, in the area of the planned activity, human activities that may reasonably be believed to be affected, including economic activities;]

3. Public notification and consultation shall, in accordance with Article 48 bis, paragraph 3, be transparent and inclusive, conducted in a timely manner [, and targeted and proactive [, where practicable,] when involving adjacent small island developing States].

4. Substantive comments received during the consultation process[, including from adjacent coastal States,] shall be considered and responded to or addressed by Parties. Parties shall give particular regard to comments concerning potential impacts in areas within national jurisdiction. Parties shall make public the comments received and the responses or descriptions of the manner in which they were addressed.

[5. The Scientific and Technical Body may conduct further public consultation on reports it is requested to review under this Agreement.]

[6. In cases where the planned activities affect areas of the high seas that are entirely surrounded by the exclusive economic zones of States, Parties shall:

(a) Maintain targeted and proactive consultations, including prior notification, with such surrounding States;

(b) Consider the views and comments of those surrounding States on the planned activities and provide written responses specifically addressing such views and comments [, and revise the proposed activities accordingly].]

7. Parties shall ensure access to information related to the environmental impact assessment process under this Agreement. Notwithstanding this, Parties shall not be required to disclose confidential or proprietary information. The fact that confidential or proprietary information has been redacted shall be indicated in public documents.

8. Guidance may be developed by the Conference of the Parties to facilitate consultation at the international level.

Article 35

Environmental impact assessment reports

1. Parties shall ensure the preparation of an environmental impact assessment report for any such assessment undertaken pursuant to this Part.

2. Where an environmental impact assessment is required in accordance with this Part, the environmental impact assessment report shall include, as a minimum, the following information: a description of the planned activity, including its location, a description of the results of the scoping exercise, a baseline assessment of the marine environment likely to be affected, a description of potential impacts, including potential cumulative impacts and impacts in areas within national jurisdiction, a description of potential prevention, mitigation and management measures, uncertainties and gaps in knowledge, information on the public consultation process, a description of consideration of reasonable alternatives to the planned activity, a description of follow-up actions, including an environmental management plan, and a non-technical summary.

[3. Draft environmental impact assessment reports [for activities deemed through the screening as likely to have more than minor or transitory impact] prepared pursuant to this Agreement shall be considered and reviewed by the Scientific and Technical Body.]

[4. [Before proceeding with a recommendation to the Conference of the Parties under article 38, paragraph 1, the] [The] Scientific and Technical Body may recommend rectifications to the Party. [The Party may require the Scientific and Technical Body, at any time, to make a recommendation to the Conference of the Parties.]]

5. Parties [and the Scientific and Technical Body] shall publish the reports of the environmental impact assessments, including through the clearing-house mechanism. The secretariat shall ensure that all Parties are notified in a timely manner when reports are published in the clearing-house mechanism.

6. Final environmental impact assessment reports shall be considered and reviewed by the Scientific and Technical Body, on the basis of relevant practices, procedures and knowledge under this Agreement, for the purpose of developing guidelines, including the identification of best practices.

7. A selection of the published information used in the screening process to make decisions on whether to conduct an environmental impact assessment, in accordance with articles 24 and 30, shall be considered and reviewed by the Scientific and Technical Body, on the basis of relevant practices, procedures and knowledge under this Agreement, for the purpose of developing guidelines, including the identification of best practices.

...

Article 38

Decision-making

1. **Option A:** A Party under whose jurisdiction or control a planned activity falls shall be responsible for determining if it may proceed.

Option B: A Party under whose jurisdiction or control a planned activity falls shall be responsible for determining if it may proceed when the proposed activity has been determined to likely have equal to or less than a minor or transitory effect on the marine environment under article 24, or require an environmental impact assessment under article 23, paragraph 5.

1bis. The Conference of the Parties shall be responsible for determining whether a planned activity under the jurisdiction or control of a Party, which has been determined to likely have greater than a minor or transitory effect on the marine environment under article 24, or require an environmental impact assessment under article 30, may proceed, in accordance with the following procedural requirements:

(a) The environmental impact assessment report shall be submitted to the Scientific and Technical Body for review, which shall, taking into due account inputs received during public consultation, review the report and make a recommendation to the Conference of the Parties on whether the planned activity under the jurisdiction or control of a Party should proceed;

(b) A revised environmental impact assessment report may be submitted to a panel of experts appointed by the Scientific and Technical Body for reconsideration where the Scientific and Technical Body has recommended that the planned activity under the jurisdiction or control of a Party should not proceed.

-
2. When determining whether the planned activity may proceed, a Party shall take full account of the results of an environmental impact assessment conducted in accordance with this Part. [No decision allowing the planned activity under the jurisdiction or control of a Party to proceed shall be made where the environmental impact assessment indicates that the planned activity under the jurisdiction or control of a Party would have significant adverse impacts on the environment [which cannot be mitigated]][A decision to authorize the planned activity under the jurisdiction or control of a Party shall [only be made when the Party determines][include consideration as to whether] the activity can be conducted in a manner consistent with the avoidance of significant adverse impacts on the marine environment].]
 3. Decision documents shall clearly outline any conditions of approval related to mitigation measures and follow-up requirements. Decision documents shall be made public, including through the clearing-house mechanism.
 4. At the request of a Party, the Conference of the Parties may provide advice and assistance to that Party when determining if a planned activity under its jurisdiction or control may proceed.

Article 39

Monitoring of impacts of authorized activities

Parties shall[, using recognized scientific methods,] keep under surveillance the [effects] [impacts] of any activities in areas beyond national jurisdiction which they permit or in which they engage in order to determine whether these activities are likely to pollute or have adverse impacts on the marine environment. In particular, Parties shall monitor the impacts of an authorized activity under their jurisdiction or control in accordance with the conditions set out in the approval of the activity.

...

Article 41

Review of authorized activities and their impacts

1. Parties shall ensure that the impacts of the authorized activity monitored pursuant to article 39 are reviewed.
2. Should the monitoring required under article 39 identify significant adverse impacts that were not foreseen in the environmental impact assessment, in nature or severity, or if any of the conditions set out in the approval of the activity are breached, the Party [with jurisdiction or control over] [which authorized] the activity [or the Scientific and Technical Body] shall review its decision authorizing the activity and, as appropriate:
 - (a) Notify the Conference of the Parties, other Parties and the public, including through the clearing-house mechanism;
 - (b) Require the proponent to propose and implement measures to mitigate and/or prevent those impacts or halt the activity;
 - (d) Evaluate and implement measures proposed under subparagraph (b) [, after which the Scientific and Technical Body shall recommend whether the activity should continue].
- [3. On the basis of the recommendation of the Scientific and Technical Body, the Conference of the Parties shall decide whether the activity may resume.]

[4. In the case of disagreements in respect of monitoring, the Parties concerned shall seek resolution by non-adversarial means, including [referring the matter to the Implementation and Compliance Committee to facilitate resolution] [diplomatic means [, without [affecting] recourse to judicial or non-judicial bodies]].]

5. Relevant stakeholders, including all States, [in particular adjacent coastal States, including small island developing States,] [with an emphasis on the States potentially most affected as determined under article 34, paragraph 1, subparagraph a,] shall be kept informed through the clearing-house mechanism of [and consulted actively, as appropriate, in] the monitoring, reporting and review processes in respect of an activity approved under this Agreement.

6. Parties shall publish, including through the clearing-house mechanism:

(a) Reports on the review of the monitoring of the environmental impacts of the authorized activity pursuant to article 39;

(b) Decision-making documents, including a record of the reasons for the decision by the Party, when a Party has reviewed its decision authorizing the activity.
